



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 24, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201806460 regarding Police Officer Evelyn Oropeza-Zuniga, Tax No. [REDACTED] (DADS No. 2019-20644) and Police Officer Kyle Ting, Tax No. [REDACTED] (DADS No. 2019-20646)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including body worn camera video. In this matter, the officers, along with Sergeant Luis Rodriguez, Tax No. [REDACTED], arrested an individual for petit larceny. During the apprehension of the individual a struggle ensued and the individual's pants fell exposing his private areas. After successfully handcuffing the individual he was left rear cuffed laying in a prone position, while his private areas continued to be exposed. It should be noted that the individual made no sworn statements to CCRB and refused to cooperate.

In reviewing the body worn camera video and the statements made by the officers it is apparent the officers did not purposefully pull the individual's pants down or had any intent to do so, rather the pants apparently fell as the struggle ensued. It is clear from the record that there were no overt acts committed by the officers to expose the individual's private areas or to humiliate him in any way. There was no ridicule directed at the individual by any of the officers or by the public that can be observed on the copious body worn camera footage. Additionally, no other person interviewed made any statements about the individual's private areas. Therefore, the Police Commissioner has determined that no disciplinary action will be taken against Police Officer Ting and Police Officer Oropeza-Zuniga in connection with CCRB's findings and recommended penalty in this matter.

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Nevertheless, the Department has an obligation to address the actions of officers when the actions of the officers would warrant retraining or instructions, as was unmistakably demonstrated in this instance by video evidence. In this matter, Police Officers Evelyn Oropeza-Zuniga and Ting, although there was no malicious intent, did not demonstrate courtesy or civility towards the arrested individual when they failed to cover or shield his exposed private areas after he was in their control and the struggle had abated. It is clear from the record that the officers would benefit from receiving instructions on courtesy and civility.

Therefore, separately and distinctly from CCRB's findings, the Police Commissioner has determined that Police Officer Ting and Police Officer Oropeza-Zuniga will receive Instructions from their Commanding Officer regarding Patrol Guide Procedure No. 200-02 "Mission, Vision, and Values of the New York City Police Department," specifically as it pertains to respecting the dignity of each individual and rendering services with courtesy and civility.

The disciplinary matter as it pertains to Sergeant Luis Rodriguez, Tax No. [REDACTED] (DADS No. 2019-20645) will be addressed under a separate cover.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office